

Compass Education and Migration Pty Ltd

ABN: 17 613 203 419

237 Sandy Bay Road, Sandy Bay, TAS, 7005, Australia

MIGRATION AGENT REPRESENTATION AGREEMENT

This is a retainer agreement between:

Compass Education and Migration Pty Ltd (ABN 17 613 203 419)

237 Sandy Bay Road, Sandy Bay, TAS, 7005

Phone: (03) 6234 2997

Email: admin@globalnznz.com

And

[Name of client]

of

[Address of client]

the client of Compass Education and Migration Pty Ltd ("the client"):

CLIENT DETAILS	Name: Date of Birth: Passport Number: Address: Email: Mobile:
SERVICE CATEGORY	☐ Advice Only: ☐ Preliminary advice only ☐ Freedom of Information ☐ Visa Applications: Visa Category/ Class/ Subclass ☐ or Review : ☐ AAT ☐ MRT ☐ Ministerial Discretion ☐ Others:
FEES & CHARGES	Fees and charges are set out in the 'SCHEDULE OF FEES' at the end of this document.

IMPORTANT INFORMATION FOR CLIENTS:

The terms and conditions of this agreement are set out below. Make sure you have read and understood the conditions before entering into the agreement. If you wish to seek independent legal advice about this agreement, you should do so before signing this agreement. By initialing the bottom of each page, you are indicating that:

- You have read and understood the terms in this agreement.
- All the documents you provided are authentic and effective.

I have read and understood the terms below and I agree to be bound by this agreement.

Signed by the Client: Date:..... / / 202_

Signed by the Director: Date:..... / / 202_

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TERMS AND CONDITIONS

1. APPOINTMENT OF Compass Education and Migration Pty Ltd

- a. The Client appoints Compass Education and Migration Pty Ltd (ABN 17 613 203 419) ("Compass Education and Migration") to represent the Client and to perform the services described in this agreement.
- b. In the event the Client requires immigration advice, Compass Education and Migration shall from time to time advise the Client in writing the name and contact details of the registered migration agent representative who will be responsible for the Client's case ("the Responsible Agent").
- c. Compass Education and Migration will notify the Client in writing in the event the allocated registered migration agent representative changes.

2. CODE OF CONDUCT (THE CODE) FOR IMMIGRATION MATTERS

- a. In the event the Client requires immigration advice, Compass Education and Migration shall provide the Client with a copy of The Code of Conduct as required by Office of the Migration Agents Registration Authority ("The Code"). The Code is intended to regulate the conduct of registered migration agents by introducing a proper standard for the conduct of business as a registered migration agent and establishes the minimum attributes and abilities that a person must demonstrate to perform as a registered migration agent.
- b. The Agent provided a copy of the Code to the Client before signed the agreement.
It is also available at www.mara.gov.au.
- c. If the Code (which is prescribed in Schedule 2 of the Migration Agent Regulations 1998) is amended in a way that is inconsistent with this agreement, the Agent and Client agree to vary this agreement to comply with the new Code.
- d. If the Code is inconsistent with the agent's obligations as a legal practitioner or otherwise, or is inconsistent with the laws of the Country in which the Agent is operating, the Agent and the Client agree to vary this agreement to comply with the laws of that Country, to the extent of any inconsistency.

3. SERVICES TO BE PROVIDED

The services to be provided under this agreement include the following:

- a. Provide advice relating to the Client's migration goals and their choice of visa category.
- b. Provide frank and candid advice regarding the prospects of success
(Our agents cannot *guarantee* the success of an application.)
- c. Analyze current Immigration Law relating to the nominated visa category or review application.
- d. Assist in the completion and/or checking of relevant application forms.
- e. Provide advice and assistance relating to documentation required to support the application.
- f. Prepare any necessary supporting submissions to the relevant Assessing Authority, Department or review body
- g. Submit the application to the relevant Assessing Authority, Department or review body for processing as soon as possible.
- h. Wherever possible, supply any further documentation or information requested by the Department on receipt of documents from the Client.
- i. Wherever possible, assist the Client to comply with any request made by the Department or review body.
- j. Keep the Client fully informed of all developments concerning the progress of the application.
- k. Promptly advise the Client of any communications from the Department or review body.
- l. During the processing of the application, advise the Client of any changes to the law or Departmental policy requirements affecting the visa application.
- m. Advise the Client promptly of the outcome of the application.
- n. Provide post grant migration advice regarding visa conditions and requirements.
- o. Other:

4. WHO WILL PERFORM THE WORK

All immigration assistance will be provided by a registered migration agent employed by **Compass Education and Migration**

- a. The Responsible Agent and other migration agents of Compass Education and Migration may work on your matter from time to time.
- b. Administrative services may be provided by other staff. The Responsible Agent will properly supervise the work carried out by any staff working for Compass Education and Migration.

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5. Compass Education and Migration DISCLOSES AND WARRANTS THAT IT:

- a. Is in the business of providing educational related advice and immigration advice;
- b. Employs or contracts registered migration agents who are registered with the Migration Agents Registration Authority.
- c. Maintains the required level of Professional Indemnity Insurance.
- d. Has no conflict of interest in terms of Part 2 of the Code.
- e. It may from time to time receive a financial benefit when referring various educational facilities to the Client.
- f. Will inform the Client in writing if it receives a financial benefit as a result of providing advice of a non-migration nature to the Client.
- g. Will act in accordance with the law and in the best interests of the Client, and deal with the Client competently, diligently and fairly.
- h. Will provide courteous and attentive service.
- i. Will ensure that the Client has access to an interpreter if necessary. (The Client will be required to pay any fees charged by the interpreter.)
- j. Will, on request, provide the Client with a copy of their application and any related documents (The Agent is entitled to charge a reasonable amount for copies.)

That its registered migration agents have

- k. Sufficient knowledge of the relevant laws to be able to competently provide the agreed services.
- l. Will advise the Client in writing, if in the Agent's opinion, the application is vexatious or grossly unfounded.
- m. Will, if providing translating or interpreting services, include the Agent's name and registration number on a prominent part of the translated document.

6. FEE TYPE

Compass Education and Migration will charge the Client as follows:

- I. ☐ Lump Sum Agreement
- II. ☐ Hourly Rate
- a. For Lump Sum agreements, the fee estimate for each service is as follows:
- b. For Hourly Rate agreements: \$..... per hour (plus 10% GST if applicable)

GST

- III. ☐ Is payable on this transaction
- IV. ☐ Is included in lump sum payment on this transaction

7. FEE ESTIMATE

Part 5 of the Code requires Agents to set and charge a fee that is reasonable in the circumstances

<u>i. Contract</u>	<u>AUD</u>
<u>ii. GST(10%)</u>	<u>AUD</u>
<u>Priority Processing Fee (If applicable)</u>	<u>AUD</u>
<u>Total</u>	<u>AUD</u>
<u>First installment fee</u>	<u>AUD is to be paid when signing contract.</u>
<u>Second installment fee</u>	<u>AUD is to be paid before lodgment.</u>

The Agent must give the Client written notice of any material change to the estimated cost as soon as the Agent becomes Aware of the likelihood of a change occurring.

The Client agrees to pay Compass Education and Migration in accordance with the above fee disclosure and fee estimate.

The Client acknowledges and agrees that he/she is not entitled to a refund of any fees paid in the event the Client terminates this agreement of his/her own accord.

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OTHER CHARGES

These charges are in addition to the fees noted above and may attract GST. Compass Education and Migration may, at any time, withdraw money from the Client's account for disbursements (i.e. charges) that are required to be paid to the Department, or any other agency, for the client. Please note Departmental application fees generally are increased in July of each year, and there may be a necessity for the Client to pay the balance in the event the application fees rise after receiving any monies and before the application fees fall due.

- a. First Installment Visa Charge
- b. Second Installment Visa Charge
- c. Skill Assessment
- d. Translations/Interpreters
- e. English Language Testing
- f. Other Including Expert Witnesses

8. Termination and Refund Policy

Compass Education and Migration may terminate this Agreement, and the Client will not be refunded any monies paid if:

- 1) The Client's application is unsuccessful;
- 2) The Client provides incorrect or false information to the agent;
- 3) The Client is unable or unwilling to provide all the required documents to Compass Education and Migration as requested by the Department of Immigration;
- 4) The Client is unable or unwilling to comply with the directions or recommendations made by the Department of Immigration;
- 5) The Client is unable or unwilling to comply with the advice of Compass Education and Migration;
- 6) The immigration office changes policy during the application processing period resulting in the Client being unable to complete his/her visa application;
- 7) Change of mind.

9. PAYMENT METHOD AND STRUCTURE

Fees listed under 'Other Charges' are not included in these installments and must be paid on request.

a. Payment should be made in the following installments by: ☐ Cash ☐ Cheque ☐ Direct deposit to trust account:

Bank: Commonwealth Bank (Australia)
Account Name: Compass Education and Migration Pty Ltd
Account No.: 1052 1270
BSB: 062 759
Branch Location: T 10.52C World Square Shopping Ctr, Sydney, NSW, 2000
SWIFT Code: CTBAU2S

- b. Compass Education and Migration will hold all fees paid in advance in the a trustaccount.
- c. After the Agent has completed each block of work outlined above, and issued an invoice which sets out:
- (i) the particulars of each service performed; and
 - (ii) the charge made in respect of each such service;
 - (iii) the Agent will be entitled and authorized to withdraw the fees relating to that block from the trustaccount.

I have been informed of CONSUMER GUIDE for REGISTERED MIGRATION AGENTS and I have been briefed that the documents can be accessed from the following website:

https://www.mara.gov.au/get-help-visa-subsite/Files/consumer_guide_english.pdf

10. Disclaimer

The Client is solely responsible for ensuring the authenticity and validity of all documents provided to Compass Education and Migration. The Client further warrants that any material or documents provided to Compass Education and Migration are authentic and valid. For avoidance of doubt, the parties acknowledge that it is the Client's responsibility to provide Compass with current material, documents or identification documents, and replace any expired material, documents, identification documents, enrolment documents etc. with valid ones at all times.

Compass Education and Migration will not be held responsible for any claim, damage or loss suffered by the Client in the event the Client provides false, misleading, invalid or expired documents to Compass Education and Migration, or if the documents provided by the Client has expired or is no longer valid by the time the relevant Assessing Authority, Department or review body processes the Client's application.

Signed by the Client: Date: / / 202_

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Credit card charge authorization form

CUSTOMER'S INFORMATION

First Name:

Last Name:

Date of Birth:

Mobile:

Email Address:

Residential address:

Payment

Card Type:

- ☐ VISA
☐ MASTER CARD
☐ AMEX
☐ JCB
☐ DINERS CLUB INTERNATIONAL

(COST OF PAYMENT: Visa/MasterCard: 1.4% of the debit amount will be charged, AMEX/JCB: 1.4% of the debit amount will be charged. Diners: 1.99% of the debit amount will be charged. These fees are non-refundable and subject to changes.)

Card Holder's Name:

Address (the one you provide to your bank):

Card Number:

Expiry Date:

CVV:

YOU ARE REQUIRED TO FULLY COMPLETED AND RETURN THIS FORM TO US. YOUR COMPLETION OF THIS AUTHORIZATION FORM HELPS US TO PROTECT YOU, OUR VALUED CUSTOMERS, FROM CREDITCARD FRAUD. ALL INFORMATION ENTERED ON THIS FORM WILL BE KEPT STRICTLY CONFIDENTIAL.

By signing below, I declare that the information given on this form is true and correct. I agree and is aware that Compass Education and Migration Pty Ltd has the authority to charge my above said credit card for any application(s) regarding my visa. I understand that should I dispute a charge through my credit card provider before giving reasonable notice to Compass Education and Migration Pty Ltd, it will result the application(s) become invalid and may result in delays in processing for at least 24 hours, I also declare that Compass Education and Migration Pty Ltd will have no responsibility or liability for any visa application outcome due to credit card errors that I incur, including insufficient funds and invalid card information.

Cardholder's Signature:

Date: